APPLICATION UNDER ORDER XXXIX RULES 1 AND 2 OF THE CODE OF CIVIL PROCEDURE, 1908

CS(COMM) 77/2025

Sunrise Beverages Private Limited v Coastal Brands Limited

1. The Plaintiff has a prima facie case because the termination was issued before the cure period expired.

2. The balance of convenience favours the Plaintiff, whose distribution network will collapse if the Defendant appoints another distributor.

3. The Plaintiff will suffer irreparable injury if no interim injunction is granted.

PRAYER

The Plaintiff prays for an interim injunction restraining the Defendant from appointing any other distributor in Rajasthan.

Dated this 25 March 2025

Advocate for the Plaintiff